

SENATE No. 2405

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish a monthly payment plan and protect motorists from excessive EZ-Pass fees and fines.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/24/2025</i>

SENATE No. 2405

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 2405) of Jason M. Lewis and Steven Owens for legislation to establish monthly payment plan option for E-Z Drive MA tolls. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2256 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish a monthly payment plan and protect motorists from excessive EZ-Pass fees and fines.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13 of chapter 6C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (c) the following subsections:-

3 (d) The department shall regularly review fees and fines assessed under the Pay By Plate
4 and E-ZPass MA Systems, as defined in 700 CMR 11.02. At least once a month the department
5 shall identify persons owing tolls, fines, fees or other debts of than \$100. The department shall
6 attempt to make contact with these account holders using all possible means to let them know
7 their account status and to explain actions they can take to address their account balances. These
8 efforts shall include, but are not limited to, comparing address information on file with the

9 national change of address registry, communicating with the account holder by email, and calling
10 the account holder by cell and home phone.

11 (e)(1) The department shall establish a monthly payment plan option for persons owing
12 tolls, fines, fees or other debts of \$250 or more under the Pay By Plate or E-ZPass MA systems,
13 as defined in 700 CMR 11.02. The minimum monthly payment due shall be \$25. Upon receipt of
14 the first payment due under a monthly payment plan, the department shall not charge any
15 additional fines or fees on existing debts for late payment or failure to pay. The department may
16 accept automatic monthly payments by credit or debit card on file with the department or
17 payments made by check or money order received by mail or in person.

18 (2) If a person participating in a monthly payment plan is complying with all the
19 requirements of this subsection and any regulations promulgated by the department pursuant to
20 this subsection, the department shall not instruct the registry of motor vehicles to refuse to renew
21 the person's license to operate a vehicle or vehicle registration due to the existence of unpaid
22 tolls, fines, fees or other debts owed by the person under the Pay By Plate or E-ZPass MA
23 systems; provided, that the department shall notify the registry of motor vehicles for the
24 registry's records.

25 SECTION 2. Chapter 90 of the General Laws is hereby amended by striking out section
26 20G and inserting in place thereof the following section:-

27 Section 20G. (a) If a person fails to appear in accordance with a notice to appear issued
28 pursuant to a Massachusetts Department of Transportation regulation or fails to pay in a timely
29 manner a violation issued pursuant to such regulations after having received notice thereof, the
30 authority shall notify the registrar who shall place the matter on record and shall not renew the

license to operate a motor vehicle or the registrations of any vehicles owned by such person until the matter has been disposed of in accordance with applicable law or regulation. If the person is found to be a resident of another state or jurisdiction, the registrar shall revoke the violator's right to operate in the commonwealth until the matters have been disposed of in accordance with applicable law or regulation. The liability of lessors of motor vehicles for violations on facilities owned by the authority shall be governed by authority regulations in a manner consistent with the provisions of section 20E. The registrar shall prescribe the manner, form and content of any notice received from the authority to take such action.

(b)(1) Notwithstanding subsection (a), the registrar may issue a conditional reinstatement of a license to operate a motor vehicle or the vehicle registration for a person who: (i) owes tolls, fines, fees or other debts to the Massachusetts Department of Transportation under the Pay By Plate or E-ZPass MA systems, as defined in 700 CMR 11.02; (ii) is participating in the monthly payment plan option, established in subsection (e) of section 13 of chapter 6C and has completed at least 1 payment under such a monthly payment plan; (iii) is in compliance with said subsection (e) and any relevant regulations; and (iv) is otherwise qualified to hold said license or registration.

(2) The registrar shall revoke a license or registration that was conditionally reinstated pursuant to paragraph (1) if: (i) the person is more than 30 days in arrears on a payment required under a monthly payment plan entered into pursuant to subsection (e) of section 13 of chapter 6C; or (ii) for any other violation of a general or special law or regulation.

(3) Upon successful completion of the monthly payment plan established in subsection (e) of section 13 of chapter 6C, the registrar shall fully renew the person's license and vehicle

53 registration; provided, that the person is otherwise qualified to hold said license or vehicle
54 registration.

55 SECTION 3. The Massachusetts Department of Transportation and the registrar of motor
56 vehicles shall promulgate or amend any regulations necessary to implement this act within 5
57 years of its passage.

58 SECTION 4. This act shall take effect 120 days after passage.